

Contracts: Section B (LAW 1010)

1. Contact Information

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Contact Hours: Arranged individually by email

2. Course Information

a. Class Times

Contracts meets from 10:30 to 12:20 each Monday and Wednesday in Lecture Hall 1002. It may be necessary from time to time to reschedule classes or teach a class virtually. Arrangements for such classes will be announced as and when needed.

b. Office Hours

Email me for appointment to meet in person or via Zoom.

c. Course Purpose and Learning Objectives

In this course, students should acquire the following:

- an understanding of and ability to articulate the basic rules and principles of contract law and their underlying purposes or rationales,
- an introduction to some theoretical perspectives concerning the function or purposes or deficiencies of contract law in modern society,

- an understanding of and an ability to employ the basic conventions and methods of legal argumentation, analysis and decision-making in the common law system.
- an ability to criticize existing doctrines of contract law and particular judicial decisions with a view to suggesting possible reforms to the law and anticipating future growth of contract law doctrine.

d. Feedback and Evaluation

The Final Examination in this course will be open book, i.e., students will be permitted to bring required texts, study materials, notes or other written materials into the exam room. All such materials should be physical or printed copies. There will be no access to your soft copy notes etc in the Final Examination. The Reading List for the course will be appended to the final examination. Access to AI generated material during the examination is prohibited. There shall be a word limit stated for the final examination. **The student's grade for the course is entirely constituted (100%) by the grade on this Final Examination. Following the release of final grades, students can email me for appointment for feedback on the final exam papers.**

During the term, feedback will be provided in this way: a mid-term exam in Contract Law will be written on the material covered in class to date during class-time on 15 October 2026. It will be an open book examination. Students will receive individualized feedback on their responses. **Completion and submission of this mid-term exam is mandatory.** Failure to submit an answer may be taken into account in tie-breaking the grades on the final examination.

e. AI Policy

Use of AI is prohibited in this course unless and to the extent that the instructor permits it. At the moment, the only use permitted is, consistent with section 5.3.a.x. of the Senate Academic Conduct Policy and Procedures, for purposes of correction of grammar, idiom, punctuation, spelling and sentence mechanics (and nothing beyond).

f. Course Materials

There is one required text for this course: Waddams, Girgis, MacDougall, McCamus and Neyers, *Cases and Materials on Contracts*, 7th ed. (2023). It is a collection of excerpts from judicial decisions and other materials, a so-called "casebook". The attached Reading List for the course identifies readings from this text that are required reading for this course. This book cost about \$137.00 at the publisher's website.

3. Frequently Asked Questions**a. What is contract law “about”?**

Contract law is the body of legal doctrine that pertains to the enforcement of promises. Among the questions to be considered in this course, then, are the following:

- what kinds of promises should the law enforce?
- what is a contract and when and how is it created?
- what are the consequences of failing to perform an enforceable promise?
- are there circumstances in which promises that might otherwise appear to be enforceable should be considered to be unenforceable for reasons of fairness or public policy?
- and so on.

The first-year contracts course examines general principles of contract law, one of the basic doctrinal building blocks of the legal system. It provides a foundation for many upper year courses dealing with particular transaction types.

b. Do I need to know something about business or commerce in order to understand contract law?

The short answer is “No”. It is not an advantage to have studied commerce in your undergraduate degree, nor a disadvantage in not having done so. You will be able to figure out the commercial context of particular cases and, in the event of any difficulty, I am here to help you do so.

c. How should I prepare for class?

I have traditionally conducted my classes largely through (i) lectures intended to broadly explain the law relevant to the subject matter of the class and (ii) review of decided cases, and in some instances, hypothetical problems through discussion and interchange with members of the class. For each class, I will assume that you have read the required materials and are ready to discuss them. I will not summarize them in class, though I may ask you to do so. For each class, then, you should prepare by reading the assigned materials. You may find it necessary, especially at the beginning, to do so a few times. You should then prepare a summary of each case or other excerpt in order to enhance your familiarity with the material. If you prepare these summaries diligently, they will help you develop the necessary analytical skills and will provide you with a useful resource for exam preparation.

d. Should I rely on course summaries made by students who previously studied the course or by AI?

This is **not** a good idea if it is meant to be a substitute for creating your own summaries of the materials. The value of a course summary is found largely in the personal act of creating it. Moreover, my limited perusal of student summaries from teaching in other institutions – even by very good students – and by AI indicates that they invariably contain errors that will lead you astray. Published contracts textbooks are a more reliable resource.

4. OSGOODE AND YORK ACADEMIC POLICIES

This section is required by Osgoode Hall Law School to be in every course outline. Students are expected to have read the whole section.

a. Academic Honesty and Integrity:

Osgoode students are required to maintain high standards of academic integrity and are subject to the **York Senate Academic Conduct Policy and Procedures** and the relevant [Osgoode Academic Rules](#). Further information is available on the [York Academic Integrity](#) site.

The Senate Policy and Osgoode Academic Rules are also available via the *JD Students* part of the MyOsgoode website, proceeding through the “Student Handbooks” button, then “JD Academic Handbook”, and the finally the “Academic Rules” link.

Special attention is drawn to the following three matters related to reliance on external persons, works, and/or technologies:

1) *Unauthorized use of collaborative study materials*

The provisions of the York Senate Policy on Academic Honesty on unauthorized collaboration have been supplemented by Osgoode’s “[Guidelines on use of Collaborative Study Materials in Examinations](#)”, found [HERE](#). Students are strongly advised to read the Guidelines closely; knowledge of them will be assumed. Note a key bottom-line is that use of collaborative study materials in the ways and contexts set out in the Guidelines is prohibited unless explicitly permission by the instructor and, then, only to the extent of that authorization.

2) *Assistance from content-generating artificial intelligence (GenAI) and/or AI prohibited by the instructor*

The Academic Conduct Policy and Procedures contain rules on use of GenAI and AI more generally. Some key provisions are reproduced below to ensure no student is unaware of them:

Section 5.2.a.i., ii. & x:

Cheating – the attempt to gain an unfair advantage in an academic evaluation. Forms of cheating include but are not limited to:

- i. Using an undocumented or unreferenced content generator, including the use of text-, image-, code-, or video-generating artificial intelligence (AI);
- ii. Obtaining assistance by means of documentary, artificial intelligence technology, electronic or other aids that are restricted by the instructor (see Section 6.2.c);
- ...
- x. Submitting work prepared in collaboration with a third party when collaborative work on an assessment has not been authorized by the instructor/supervisor, and goes beyond correction of grammar, idiom, punctuation, spelling and sentence mechanics;

For the sake of caution “third party” in section 5.2.a.x. should be read to include use of tools like Word’s spelling and grammar feature, Grammarly, and so on. Such tools are fine to use but they cannot “go beyond correction” any more than a human third party’s assistance could. Because this provision is structured as prohibited-unless-authorized, students may not use such tools to essentially re-write drafts (if and when some tools develop such capacities) unless the instructor has enunciated a general course policy allowing such use.

Section 4:

Undocumented/Unreferenced: refers to undocumented and/or unreferenced quotes, passages, sources, and other missing or improper citation of work submitted for evaluation.

Section 6.2. & 3:

It is the responsibility of **students** to:

...

- c. follow their instructors’ expectations for using text-, image-, code-, or video-generating artificial intelligence (AI); referencing sources; group work and

collaboration, and be proactive in pursuit of clarification and resources to support these expectations;

...

It is the responsibility of **course directors and graduate supervisors** to:

b. communicate with and support students in following instructors' expectations for *using text-, image-, code-, or video-generating AI*; referencing sources; conducting group work and collaboration;

3) *Plagiarism, unattributed paraphrasing and connections to improper use of AI*

The York Senate Academic Conduct Policy and Procedures prohibit plagiarism in section 5.2.b.:

Plagiarism – the appropriation of the work of another whether published, unpublished or posted electronically, attributed or anonymous, without proper acknowledgement. This includes but is not limited to:

- i. Presenting all or part of another person's work or ideas as something one has produced where work includes, but is not restricted to, text, code, technical and creative production, paragraph and essay structure and organization, and other forms that constitute intellectual property;
- ii. Paraphrasing another's writing without proper citation;
- iii. Representing another's artistic, technical work or creation as one's own;
- iv. Reproducing without citation the student's own work originally presented elsewhere; and
- v. Failing to attribute sources, or failure to attribute sources properly.

Apart from section 5.2.b.i.'s relevance to use of AI (in terms of how AI can lead to "presenting ...another person's work or ideas as something one has produced"), students are especially urged to understand that paraphrasing without proper citation is plagiarism. There has always been a concern that that some students do not sufficiently understand the need to cite to sources of paraphrases no less than directly quoted work. This problem may be growing. Of late, this is manifesting itself in students using extensive paraphrases, sometimes that go on for pages, but only citing to the source at or near the start or at or near the end – and sometimes sprinkling in a reference or two in between.

Apart from such extensive paraphrasing not being exemplary work, the moment a reader cannot know whether a given idea or thought is connected to a citation (because the citation is so distant from it) is the moment such paraphrasing also constitutes the academic offence of plagiarism for failure to properly attribute. Students are urged to take great care here, especially since there are reasons to worry that even instructor-authorized use of an AI tool can lead students to start producing substantial paraphrases of AI-generated text. Again, however poor such use of AI would be, it also comes with the risk of plagiarism if the student has not properly referenced the AI tool and any question(s) used to prompt the AI tool's answers, and/or has not documented by retaining the text of both the questions (and follow-up prompts) and the answers given by AI. Thus, section 5.2.a.i. cheating by use of unreferenced and/or undocumented AI content generation can intersect with section 5.2.b. plagiarism.

b. Religious Observance:

York University is committed to respecting the religious beliefs and practices of all members of the community, and making accommodations for observances of special significance to adherents. Should any of the dates relating to examinations or assignments for this course pose such a conflict for you, please let Assistant Dean, Students, Mya Rimon know within the first three weeks of class.

c. Students with Disabilities and Accommodation Needs:

York University has a range of resources to assist students with physical, mental, and learning disabilities/challenges in achieving their educational objectives. Students with disabilities requiring accommodation in the classroom or in the examination or evaluation process are encouraged to identify themselves to [York's Student Accessibility Services](#) office or Osgoode's Office of Admissions & Student Services as soon as possible.

Students seeking accommodation in experiential education settings are encouraged to read the "Accommodation Information for Clinical & Intensive Program" handout provided to them with their enrolment offer. All requests for accommodation will be kept confidential.

Requests for accommodation for in-term work must be made, in writing, to either the instructor or to the Academic Accommodations Coordinator, Nicole Casey. Such requests must be made as soon as the need for accommodation arises and, barring exceptional circumstances, in advance of the deadline for the work.

Requests for accommodation for final examinations and final papers may only be made to and approved by the Assistant Dean, Students, Mya Rimon and must be made in advance of the examination date or final paper due date.

d. Other York University Policies, including Ethics Review Process:

Further information concerning relevant York University academic policies, such as the Ethics Review Process for research involving human participants is available online via the [University Secretariat](#).

5. POLICIES REGARDING STREAMING AND RECORDING FOR IN-PERSON, REMOTE, AND HYFLEX (DUAL-DELIVERY) TEACHING AND LEARNING**a. Remote and Hyflex classes:**

In 2026-27, a handful of courses are being delivered fully remotely (i.e., using Zoom), partly remotely (blending in-person classes for the majority of the class with less frequent online classes or modules) or by Hyflex (dual-delivery). The Hyflex mode of delivery involves some students joining class in real-time from an online connection while the rest of the students are in-person in the physical classroom with the instructor.

Note, however, that instructors of all in-person courses have the discretion for pedagogical reasons to run some classes in a way that has students attending online, whether everyone is online including the instructor (fully remote on Zoom) or whether some are online with the instructor in the physical classroom with other students (Hyflex). The number of such classes is limited by Osgoode's definition of an in-person course as being a course that is predominantly and essentially in person.

b. Modes of Delivery, Streaming, and Recording:

With respect to lecture classes in "courses" (as opposed to "seminars"), class sessions must be recorded – whatever mode in which they are being taught – in order to be in compliance with Osgoode's recording policy for lecture courses. For regular in-person lecture sessions, that means recording from the computer console at the front of the class of both the instructor's voice and the screen display using a platform called Panopto. If a given lecture class session is done in a synchronous remote mode (Zoom) or a Hyflex mode, it too must be recorded under Osgoode's recording policy.

Then, for any of these modes, it is left to the pedagogical judgment of the instructor as to whether the recording will be posted on eClass for all students in the course to access. Where an instructor decides not to make the recording of their lecture class available to all students in the class (as they are permitted to decide), the recording must nonetheless be made available to any student who has an accommodation that requires access to the recording.

As for seminars, there is no duty to record seminar sessions under Osgoode's policy but an instructor may record a class session (or indeed the whole course) if they wish. If they decide to, it is further in their discretion as whether to post the recording to the eClass site. As well, the above-mentioned discretion to have some classes that are not fully in-person – e.g., that are fully remote on Zoom or optionally remote for students via Hyflex – also comes with a discretion (but no duty) to record and upload.

c. Consent and Protections:

Whether in lecture classes of a course or in a seminar, activities for any class delivered synchronously online and any class delivered by Hyflex's dual-delivery method involve live streaming. They may also, and usually do, involve recording. They may further involve storing the recording online in order to make the recording available to the class, after the class has ended, on the eClass platform.

Images, audio, text/chat messaging that have been recorded may be used and/or made available by the University to students enrolled in the course and those supporting the course for the purpose of materials review, for assessment, etc. Recordings will be managed according to the University's Common Record Schedule and will be securely destroyed when no longer needed by the University. Your personal information is protected in accordance with York's [Policy on Access of Information and Protection of Privacy](#) and the [Freedom of Information and Protection of Privacy Act](#).

The University will use reasonable means to protect the security and confidentiality of the recorded information, but cannot provide a guarantee of such due to factors beyond the University's control, such as recordings being forwarded, copied, intercepted, circulated, disclosed, or stored without the University's knowledge or permission, or the introduction of malware into computer system which could potentially damage or disrupt the computer, networks, and security settings. The University is not responsible for connectivity/technical difficulties or loss of data associated with your hardware, software, or Internet connection.

By engaging in course activities that involve recording, you are consenting to the use of your appearance, image, text/chat messaging, and voice and/or likeness in the manner and under the conditions specified herein.

In the case of a live stream recording during a remote class, if you choose not to have your image or audio recorded, you may disable the audio and video functionality. In the case of a live stream recording in a Hyflex (dual-delivery) class in which some students are in-person with the instructor and some students remote online, if you choose not to have your image or audio recorded, you may opt to attend the Hyflex class from the remote end, at which point you can disable the audio and video functionality.

In each such choice situation, the power to choose should be exercised against a background understanding that disabled audio and video can seriously affect the interactive dynamics of a class environment and the collective benefits of such interaction. Accordingly, if an instructor requests students not to turn off their cameras, students should not understand this as an order but as a considered preference based on serious reflection on pedagogy. You may still exercise your choice but are requested not to do so if turning off video or audio is more a matter of convenience than of principled objection to being seen or heard in a class.

d. Duties:

You are not permitted to disclose the link to/URL of an event or an event session recording to anyone, for any reason. Recordings are available only to authorized individuals who have been directly provided the above instructions/link for their use. Recordings for personal use, required to facilitate your learning and preparation of personal course/lecture notes, should not be made without the permission of the instructor or event coordinator and, further, should not be shared with others without the further permission of the instructor or event coordinator.

READING LISTS

Required Case Book:

[Stephen Waddams, Jassmine Girgis, Bruce MacDougall, John McCamus, and Jason W. Neyers, *Cases and Materials on Contracts*, Emond Montgomery Publications Limited, 7th ed., 2023](#) (page references below are to this volume).

In preparation for class, students are expected to review the sources listed below together with notes, questions, problems or small excerpts of related cases, statutes or comparative materials following the specifically mentioned sources listed below. Introductory discussions at the beginning of a new section in the casebook should also be reviewed. The page references below are intended to capture not only the principal sources specifically listed, but to include these related materials.

For any needed assistance in understanding the materials on this list from the casebook, the following books are recommended and are available at the Library:

- John McCamus, *The Law of Contracts*, 3d ed (2020).
- Bruce MacDougall, *Introduction to Contracts*, 5th ed (2022)

NOTE: Scheduling estimates below are **approximate**. Students must read all the cases referenced below, even though we may be unable to discuss all of them in class.

CLASS SCHEDULE/READINGS

INTRODUCTION TO CONTRACTS

31 August – Introduction to Contracts

J.D. McCamus, *The Law of Contracts* 3d ed. (2020), pp 1-27 (Available through the Library)

Lawrence A. Cunningham, *Contracts in the Real World: Stories of Popular Contracts and Why They Matter* (Cambridge University Press, 2012), pp. 1-10 and 11-34. Available online through the library.

Devani v Wells [2019] UKSC 4 at paras 17-23 (ONLY)

Owners, Strata Plan LMS 3905 v. Crystal Square Parking Corp., 2020 SCC 29 (CanLII), [2020] 3 SCR 247 at paras 33 and 81-83 (ONLY)

CONTRACTS FORMATION

2 September – Offers in Contract Law

Offers and Preliminary Negotiations	150
<i>Denton v. Great Northern Railway Company</i>	150-153
<i>Johnston Brothers v. Rogers Brothers</i>	153-155
<i>Harvey v. Facey</i>	156
<i>Lefkowitz v. Great Minneapolis Surplus Store</i>	157-159
<i>Pharmaceutical Society of Great Britain v. Boots Cash</i> <i>Chemists (Southern) Ltd.</i>	159-160

09 September – Acceptance of an Offer

The Power of Acceptance	164
<i>Shatford v. B.C. Wine Growers Ltd.</i>	164-165
<i>Larkin v. Gardiner</i>	166-167
<i>Dickinson v. Dodds</i>	168-169
<i>German Civil Code</i>	170
<i>Uniform Commercial Code</i>	170
<i>Felthouse v. Bindley</i>	170-171
<i>Eliason v. Henshaw</i>	174
<i>Manchester Diocesan Council v. C & G Investments Ltd.</i>	165-166, 175
<i>Hyde v. Wrench</i>	175

14 September – Contracts Negotiated by Correspondence

Contracts Negotiated by Correspondence	205
<i>Household Insurance Co. v. Grant</i>	205-209
<i>Civil Code of Quebec</i>	209
<i>Henthorn v. Fraser</i>	210-211
<i>Byrne & Co. v. Leon Van Tienhoven & Co.</i>	211-213

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<i>Restatement of the Law of Contracts (Second)</i>		213
<i>Holwell Securities Ltd. v. Hughes</i>		214-216
<i>Eastern Power Ltd. v. Azienda Comunale Energia & Ambiente</i>		217-219
B. Coote, “The Instantaneous Transmission of Acceptance”		220-221
<i>Electronic Commerce Act, 2000</i>		222-223

16 September – Unilateral Contracts

Unilateral Contracts	324
<i>Williams v. Carwardine</i>	324-325
<i>The Crown v. Clarke</i>	325-326
<i>Civil Code of Quebec</i>	326
<i>Carlill v. Carbolic Smoke Ball Company</i>	327-329
<i>Errington v. Errington</i>	335-336
<i>Dawson v. Helicopter Exploration Co. Ltd.</i>	336-338

21 September – Formalization and Certainty

Formalization and Certainty	188
<i>British American Timber Co. v. Elk River Timber Co.</i>	188-191
<i>May and Butcher, Limited v. The King</i>	192-194
<i>Uniform Commercial Code</i>	194
<i>Foley v. Classique Coaches, Limited</i>	196-198
<i>Scammell (G.) and Nephew, Limited v. Ouston</i>	198-199
<i>Empress Towers v. Bank of Nova Scotia</i>	201-203
Stephen A. Smith, <i>Contract Theory</i>	204

The Enforceability of Promises

23 September – Consideration – An Introduction

Consideration	224
Consideration: The Bargain Theory	224-225
<i>White (Executor) v. William Bluett</i>	226

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<i>Hamer v. Sidway</i>		227
<i>Eleanor Thomas v. Benjamin Thomas</i>		228-229

Mutual Promises	230
<i>The Great Northern Railway Company v. Witham</i>	230-231
<i>Tobias v. Dick and T. Eaton Co.</i>	233-234
<i>Wood v. Lucy, Lady Duff-Gordon</i>	234-235

28 September – A Pre-Existing Duty as Consideration

Pre-Existing Duty	235
<i>Harris v. Watson</i>	235-236
<i>Stilk v. Myrick</i>	236
Holmes, <i>The Common Law</i> (1881)	237
<i>Smith v. Dawson</i>	238
<i>Raggow v. Scougall and Co.</i>	239-240
<i>Gilbert Steel Ltd. v. University Construction Ltd.</i>	240-243
<i>Williams v. Roffey Bros. Ltd.</i>	243-245
<i>NAV Canada v. Greater Fredericton Airport Authority Inc.</i>	247-251
<i>Rosas v. Toca</i>	252-253
<i>Richcraft Homes Ltd. v. Urbandale Corp.</i>	245-246
<i>Foakes v. Beer</i>	254-256
Law Revision Committee, <i>Sixth Interim Report</i>	257
<i>The Mercantile Law Amendment Act</i>	257

30 September – A Past Act or Promise as Consideration

Past Consideration	281
<i>Lampleigh v. Brathwait</i>	281
<i>Pao On v. Lau Yiu Long</i>	281
<i>Roscorla v. Thomas</i>	282-283
<i>Restatement of Contracts (Second)</i>	284
<i>Civil Code of Quebec</i>	284

05 October – Promissory Estoppel

Subsequent Reliance	284
K.N. Llewellyn, “What Price Contract? An Essay in Perspective”	284-285
Gratuitous Undertakings	285-287
Estoppel	287
<i>Central London Property Trust Ltd. v. High Trees House Ltd.</i>	288-290
<i>Combe v. Combe</i>	290-293
<i>John Burrows Ltd. v. Subsurface Surveys Ltd.</i>	294-295
<i>Trial Lawyers of BC v. Royal & San Alliance Insurance Company of Canada</i>	298-304
<i>D. & C. Builders, Ltd. v. Rees</i>	305-308
<i>Crabb v. Arun District Council</i>	311-314
Peter Heffey, Jeannie Paterson, and Andrew Robertson, <i>Principles of Contract Law</i> , 2 nd ed. 319-320	
Warren A. Seavey, “Reliance upon Gratuitous Promises or Other Conduct”	325

07 October – Contracts Executed under Seal

Non-Bargain Promises	275
The Seal	275
<i>Friedmann Equity Development Inc. v. Final Note Ltd.</i>	275
<i>Linton v. Royal Bank of Canada</i>	275-276
<i>Royal Bank of Canada v. Kiska</i> 1967 CanLII 154 (ON CA)	
Fuller, “Consideration and Form”	277-278
Alan Brudner, “Reconstructing Contracts”	278-279
Law Revision Committee, <i>Sixth Interim Report</i>	279
Law Reform Commission of British Columbia, <i>Report on Deeds and Seals</i> , 1988	279-280

14 October – Intention to Create Legal Relations (via Zoom)

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Intention to Create Legal Relations		264
<i>Balfour v. Balfour</i>		265-266
<i>Merritt v. Merritt</i>		267
<i>Family Law Act</i>		267
<i>Jones v. Padavatton</i>		267-269
<i>Rose and Frank Company v. J.R. Crompton</i>		269-271
<i>Ethiopian Orthodox Tewahedo Church of Canada St. Mary Cathedral v. Aga</i>		271-274

15 OCTOBER – MIDTERM EXAM

PRIVITY OF CONTRACT

19 October – Privity of Contracts

<i>Tweddle v. Atkinson</i>	339-340
<i>Drive Yourself Hire Co. Ltd. v. Strutt</i>	340
<i>Beswick v. Beswick</i>	340-347
<i>Dunlop Pneumatic Tyre Co. Ltd. v. Selfridge & Co. Ltd.</i>	347-350
<i>Brown v. Belleville (City)</i>, 2013 ONCA 148 (CanLII) from para 73-111 (ONLY)	
<i>London Drugs Ltd. v. Kuehne & Nagel International Ltd.</i>	364-371
<i>Fraser River Pile and Dredge Ltd. v. Can-Dive Services Ltd.</i>	372-375
<i>Quebec Civil Code</i>	376-377

DEFENCES AND PROTECTION OF WEAKER PARTIES

21 October – Duress, Undue Influence and Unconscionability

Duress, Undue Influence, and Unconscionability	529
<i>Greater Fredericton Airport Authority v. NAV Canada</i>	573-582
<i>Pakistan International Airline Corporation v Times Travel (UK) Ltd</i> [2021] UKSC 40 at paras 1-39, 62-64, 78-99 and 136 (ONLY)	
<i>Geffen v. Goodman Estate</i>, 1991 CanLII 69 (SCC), [1991] 2 SCR 353 at pp. 361-363, 367-381 and 392-395 (ONLY)	

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<u>Royal Bank of Scotland v. Etridge (AP) [2001] UKHL 44 at paras 5-89 (ONLY)</u>		
<i>Marshall v. Canada Permanent Trust Co.</i>		530-534
<i>Uber Technologies Inc. v. Heller</i>		539-549

26 October – Mistake in Contract Law

Misunderstandings

<i>Raffles v. Wichelhaul</i>		715-716
<i>Hobbs v. Esquimalt and Nanaimo Rwy. Co.</i>		713-715
<i>Henkel v. Pape</i>		720-721

Mistake in Assumptions

<i>Solle v. Butcher</i>		739-741
<i>Great Peace Shipping v. Tsavlis Salvage (International) Ltd</i>		741-747
<i>Miller Paving Limited v. B. Gottardo Construction Limited</i>		748-749

Unilateral Mistake

[Quoine Pte Ltd v B2C2 Ltd \[2020\] SGCA\(I\) 02, paras 1-7 and 78-111 \(ONLY\)](#)

28 October – Frustration of Contracts

Frustration

<i>Paradine v. Jane</i>		772
<i>Taylor v. Caldwell</i>		772-774
<i>Krell v. Henry</i>		790-792

[Canary Wharf \(BP4\) T1 Limited, v European Medicines Agency \[2019\] EWHC 335 \(Ch\) at paras 21-46 \(ONLY\)](#)

[Croke v. VuPoint System Ltd., 2024 ONCA 354 \(CanLII\)](#)

<i>The Frustrated Contracts Act</i>		818-819
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PERFORMANCE AND BREACH

09 November – Performance of Contractual Obligations

<i>Jacob & Youngs v. Kent</i>	673
<i>Hoenig v Isaacs</i>	676

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<i>Cutter v. Powell</i>		677
<i>Stubbs v. Holywell Railway</i>		678
<i>Sumpter v. Hedges</i>		679
<i>Bhasin v. Hrynew</i>		662-670
<i>C.M. Callow Inc. v. Zollinger</i>, 2020 SCC 45 (CanLII), headnotes, paras 30-75 (ONLY)		
<i>Wastech Services Ltd. v. Greater Vancouver Sewerage and Drainage District</i>, 2021 SCC 7 (CanLII), headnotes and paras 54-95, 128-135 (ONLY)		

REMEDIES FOR BREACH OF CONTRACT

11 November – Introduction to Damages for Breach of Contract

Introduction to Damages

<i>Wertheim v. Chicoutimi Pulp Company</i>	29
<i>Anglia Television Ltd. v. Reed</i>	34-35
<i>Pitcher v. Shoenbottom</i>	37-38
<i>Hawkins v. McGee</i>	38-40

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